

This NON-DISCLOSURE & NON-CIRCUMVENTION AGREEMENT (“Agreement”) is made and entered into as of 25th September, 2025 (the “Effective Date”), by and between:

- **BottomHalf Private Limited**, incorporated under the laws of India, having its principal place of business in India (“BottomHalf”); and
- **HASSCOM IPTS Contracting Company**, incorporated under the laws of the Kingdom of Saudi Arabia, with its principal place of business in the Kingdom of Saudi Arabia (“HASSCOM”).

Collectively, BottomHalf and HASSCOM are referred to as the “Parties” and individually as a “Party.”

1. Purpose

The Parties wish to exchange certain confidential and proprietary information for the purpose of **evaluating, pursuing, and executing** a potential business relationship and/or engagement (the “Purpose”).

2. Definition of Confidential Information

“Confidential Information” means any and all information disclosed by a Party (“Disclosing Party”) to the other Party (“Receiving Party”), whether oral, written, electronic, or otherwise, including but not limited to client details, trade secrets, know-how, technical data, software, inventions, processes, financial information, business strategies, research, product plans, business opportunities, pricing, proposals, and other proprietary material.

Oral information shall be considered Confidential Information if confirmed in writing within fifteen (15) days of disclosure.

Confidential Information does not include information that the Receiving Party can demonstrate by written records:

- a) was already in its possession without an obligation of confidentiality;
- b) becomes publicly available through no breach of this Agreement;
- c) is lawfully received from a third party without restriction; or
- d) is independently developed without use of or reference to the Disclosing Party’s Confidential Information.

3. Use and Obligations of the Receiving Party

The Receiving Party shall:

- a) use Confidential Information solely for the Purpose;

- b) keep such Confidential Information strictly confidential and protect it with at least the same degree of care as it uses for its own confidential information (but no less than reasonable care);
- c) not disclose Confidential Information to any third party without prior written consent of the Disclosing Party, except to employees, officers, or advisors who have a strict “need-to-know” and are bound by confidentiality obligations no less restrictive than those herein, **provided that the Receiving Party remains fully liable for any breach by such persons;**
- d) promptly notify the Disclosing Party of any unauthorized use or disclosure; and
- e) continue to observe these obligations for a period of five (5) years after termination of this Agreement, **except for trade secrets, which shall remain protected indefinitely.**

4. Non-Circumvention & Non-Solicitation

For the term of this Agreement and for a period of **five (5) years** thereafter, neither Party shall, directly or indirectly:

- a) bypass, circumvent, or attempt to deal independently with any clients, **potential clients, customers, suppliers, partners, employees, government entities, affiliates, or other entities introduced** by the other Party, without the express written consent of the introducing Party;
- b) solicit or attempt to solicit the employees, contractors, consultants, or agents of the other Party for employment or engagement; or
- c) make any disparaging statements about the other Party.

5. Return or Destruction of Confidential Information

Upon termination or expiration of this Agreement, the Receiving Party shall, at the Disclosing Party’s written request, promptly return or destroy all Confidential Information, including all copies (whether in written, electronic, or other form), and certify in writing that such return or destruction has been completed, **except for archival copies retained solely for compliance with legal or regulatory requirements, which shall remain subject to the confidentiality obligations of this Agreement.**

6. Intellectual Property Rights

All intellectual property, software, data, inventions, designs, processes, or works created or owned by a Party prior to or independently of this Agreement (“Background IP”) shall remain the sole and exclusive property of that Party except “Emstum” in MENA Region. Nothing in this Agreement shall be construed as transferring, licensing, or granting any rights

to the other Party in such Background IP except for the products, which will be developed under this joint venture agreement.

Any intellectual property, software, data, inventions, designs, processes, or works created jointly by the Parties in the course of this Agreement (“Joint IP”) shall be jointly owned by the Parties. **Neither Party shall license, sell, assign, or otherwise commercially exploit any Joint IP without the prior written consent of the other Party. The Parties shall mutually agree in writing on the use, protection, licensing, and commercialization of such Joint IP.** Each Party retains full ownership of its Background IP contributed to the JV.

7. Term and Termination

This Agreement shall commence on the Effective Date and continue for a period of five (5) years, unless terminated earlier by either Party upon ninety (90) days’ prior written notice.

Notwithstanding termination, all confidentiality, non-circumvention, and non-solicitation obligations shall survive for the periods stated herein.

8. Governing Law & Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the Kingdom of Saudi Arabia as well as Indian Corporate law.

Any disputes arising under this Agreement shall be finally resolved by binding arbitration under the Rules of the **Saudi Center for Commercial Arbitration (SCCA)**, seated in Riyadh, KSA, with proceedings conducted in English as well as India Corporate law. The arbitral award shall be final and binding upon the Parties.

9. Miscellaneous

- This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions or agreements.
- No amendment or modification shall be valid unless in writing and signed by both Parties.
- Neither Party may assign or transfer this Agreement without the prior written consent of the other Party. Any unauthorized assignment shall be null and void.
- If any provision of this Agreement is found invalid, the remainder shall remain in full force and effect.
- Each Party shall bear its own costs related to the negotiation and execution of this Agreement.

f) No provision of this Agreement shall be construed to create a partnership, joint venture, or agency relationship unless expressly agreed to in writing by both Parties.

IN WITNESS WHEREOF

The Parties have executed this Agreement as of the Effective Date.

For BottomHalf Private Limited (India):

Name: **Md Zaid Khan**

Title: **Director**

Date: **25th September, 2025**

Signature: _____

For HASSCOM IPTS Contracting Company (KSA):

Name: Eng. Hassan Abdulhamid Al-Momen

Title: Founder & CEO

Date: **25th September, 2025**

Signature: _____